

Amendment No. 1 to SB2034

Briggs
Signature of Sponsor

AMEND Senate Bill No. 2034

House Bill No. 1890*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 3, Chapter 1, Part 1, is amended by adding the following as a new section:

(a)

(1) Notwithstanding another law to the contrary, and except as provided in subdivision (a)(2), the department of education shall disclose records and information to a member of the general assembly upon request to enable the member to determine whether the laws of this state are being complied with and to determine whether the laws of this state need to be changed; provided, that the procedures set out in this section and any other procedures required by law are followed.

(2) Subdivision (a)(1) does not apply to:

(A) Individual student education records;

(B) State and local employee records, including employee background checks;

(C) School security and safety plans, including building diagrams;

(D) Student records maintained by the Tennessee Secondary School Athletic Association (TSSAA);

(E) Teacher evaluation and teacher effect data;

(F) Tennessee Value-Added Assessment System (TVAAS) data;

(G) Information that is confidential pursuant to federal law; and

(H) Information that is protected by attorney-client privilege, work product privilege, and deliberative process privilege.

(b) If a member of the general assembly receives a written inquiry regarding whether the laws of this state are being complied with or whether the laws of this state need to be changed, then the member of the general assembly may submit a written request to the department of education requesting review of the records and information relevant to the inquiry. The written request must include any information that will assist the records custodian in locating the records and information.

(c) The member shall sign a form, before reviewing the records and information, that outlines applicable state and federal laws regarding confidentiality and the penalties for the unauthorized release of the records and information. All records and information being reviewed by a member must remain in the department's possession.

(d) After reviewing the records and information, if the member requests access to additional records and information, then the department shall discuss with the member the circumstances related to the records and information being disclosed.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.